Plumtree Town (Hairdresser's, Beautician's and Barber's Shop) By-laws, 2025

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IT is hereby notified that the Minister responsible for Local Government has, in terms of section 229 of the Urban Councils Act [*Chapter 29:15*], approved the following by-laws:—

Title

1. These by-laws may be cited as the Plumtree Town (Hairdresser's, Beautician's and Barber's Shop) By-laws, 2025.

Application

2. These by-laws shall apply in all areas under the jurisdiction of Plumtree Town.

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Interpretation

3. In these by-laws—

"approved" means approved by the Council;

"barber" means a person, who carries on the business of cutting and shaving, the hair of persons;

"beautician" means a person whose job is to give people beauty treatment;

"Class A licensee" means any hairdresser holding a hairdresser's skilled Worker Class One (Journeyman) certificate or its equivalent, issued by the Ministry responsible for Higher Education;

"Class B licensee" means hairdresser and a Barber who is not qualified to be a class A licensee;

"Class C licensee" means any person who does beauty treatment, braiding and hair extensions only, from approved premises by Council;

"hairdresser" means a person who carries out the business of shaving, cutting or dressing the hair of persons including braiding and chemical treatment;

"hairdresser chemical" means a perm lotion, tint, bleach, peroxide, setting lotion or any potential hazardous chemical or substances used in the dressing of hair;

"hairdresser's shop" means any premises on which the business of a barber, beautician or hairdresser is carried on;

"licence" means a licence referred to in section 4.

Hair dressers', beauticians' and barbers' shop to be licensed

4. (1) No person shall carry on the business of a hairdresser, beautician and barber except in a licenced hairdresser's, beautician's or barber shop.

(2) An application for a licence shall be submitted to Council in the appropriate form and shall be accompanied by—

(a) a fee prescribed in the First Schedule;

(b) a health inspector's report prepared by the Health Officer or any person appointed to act on his or her behalf.

Issue of licence

5. (1) A licence may be issued for any period not exceeding one year, and shall, notwithstanding the date of issue, expire on the 31st of December of the year of issue.

(2) Council shall issue a licence—

(a) if Council is satisfied that the hairdresser's, beautician's or barber's shop conforms to the requirements of these by laws; and

(b) upon payment of the appropriate licencing fee specified in the First Schedule.

(3) Council may—

(a) refuse to issue a license to an applicant who fails to comply with or has been convicted of any offence in terms of these by laws;

(b) cancel in writing any licence if a hairdresser or any employee of his fails to comply with or is convicted of any offence in terms of these by laws;

(c) cancel or refuse to issue a licence for any other justifiable reasons.

(4) Council shall give the reasons in writing to an applicant for refusing to issue or for cancelling a license in terms of subsection (3).

(5) Any hairdresser, beautician or barber aggrieved by the refusal to issue a licence or cancellation of his or her licence may apply to the Administrative court for review.

(6) A licence shall be issued and shall specify whether the holder is a class A or class B licensee.

(7) A licence shall not be transferred—

(a) from the hairdresser's shop in respect of which it was issued to any other premises; or

(b) from a person to whom it was issued to any other person,

(8) The current licence shall be fixed and maintained in a conspicuous place in the hairdresser's shop.

Requirements for licenced hairdressers', beauticians' and barbers' shop

6. (1) In every licensed hairdresser's, beautician's and barber's shop—

(a) all rooms shall have a window or windows of an area not less than one tenth of the floor area, and minimum of one half of such a window or windows shall be capable of being opened and shall be so placed as to secure through or cross ventilation:

Provided that where natural lighting and ventilation cannot be provided, approved artificial lighting and approved mechanical means of ventilation must be provided; and

(b) the floor and walls of any room shall be—

(i) of impermeable, non-absorbent and easily cleanable material;

(ii) the minimum height between the floor and ceiling shall be three metres; and

(c) the wash basin or basins or other approved fittings, to which has been connected a piped hot water and cold water supply, shall be provided in the ratio of one wash basin or approved fitting to every two chairs, with a minimum one wash basin or approved fitting; and

(d) every shelf, fitting and table on which any hair cutting, hairdressing or shaving instruments or implements are placed shall be of glass, marble, slate enamel or similar material; and

(e) no part of the premises shall be used as a dwelling place.

(2) in a hairdressers' shop operated by a class A licence holder, there shall be available on the premises hairdressing electrical equipment such as dryers, blow dryers, clippers, tongs and hot brushes and facilities for storing hairdressing chemicals.

Requirements for hairdressers, beauticians and barbers

7. (1) Every hair dresser, beautician or barber shall—

(a) keep every part of his or her shop in good order and repair; and

(b) when attending to a customer, wear an approved clean clothing of white or light washable material;

(c) cause all hair falling on the floor to be swept and placed in the container provided; and

(d) after attending to a customer wash his or her hands thoroughly before attending to a subsequent customer;

(e) apply antiseptic liquids only as a spray or powder with pneumatic dispenser, pneumatic duster or on a clean unused piece of cotton wool; and

(f) cause all combs, razors, scissors, clippers, brushes, towels, shaving brushes and other instruments, appliances or implements, after being used on any one person to be cleaned and sterilised by the following methods—

(i) in the case of metal instruments such as clippers, razors, scissors and bowls or receivers, by flaming or bowing or disinfection with an approved preparation or by any other approved method;

(ii) in the case of plastic or backslide instruments such as curlers and combs, or rubber instruments such as curlers and ear pads or hair and shaving brushes, by disinfection with an approved preparation or by another approved method;

(iii) in the case of towels, face and neck clothes by soaking in a disinfectant followed by washing with soap and hot water and thorough rinsing;

(iv) trolleys, tables, shelves, hairdryers, wash basins, neck rests and other fittings are to be washed thoroughly with soap and water daily, wiped periodically after use with a clean cloth soaked in approved disinfectant solution.

(2) No hairdresser, beautician and or barber shall—

(a) use hairdressing chemical unless he or she is a class A licence holder;

(b) permit any person who appears to him or her to be suffering from any disease of the skin or hair or from any infectious, contagious or communicable disease to be attended to in his or her shop;

(c) permit any person referred to in paragraph (b) to be employed in the shop.

Hairdressers, beautician and barbers personal to consent to medical examination

8. (1) Every person employed on or in connection with the business of a hairdresser, beautician and or barber shall consent to examination by a registered medical practitioner at a health centre whenever required to do so by Council, at his or her own expense.

(2) Every such person, who on examination by a registered medical practitioner, may be found to be suffering from any infectious, contagious or communicable disease or who refuses or fail to submit himself or herself to examination by the medical practitioner within three days of his or her being required to do so by Council, or fails to produce to the Council within three days such examination certificate from the Medical Practitioner who has examined him or her certifying that he or she is free from any infectious, contagious or communicable disease, shall not be employed in the business of hairdresser, beautician or barber until such time as he or she shall have been so medically examined and found to be free from any infectious, contagious or communicable disease.

Closure of hairdressers', beauticians' and barbers' shop which do not meet health requirements

9. (1) Where council establishes that any hairdresser's, beautician's or barber's shop poses a danger to public health and safety due to non-compliance and requirements stipulated in these by-laws it shall withdraw or suspend such hairdresser, beautician or barber.

Offences and penalties

10. (1) Any person who—

(a) deposits, throws or places or causes hair or artificial hair to be deposited, thrown or placed upon any street side walk, open land or space or down the drain; or

(b) performs any hairdressing or hair cutting in any street or public place or;

(c) being a hairdresser uses his or her hairdresser's shop for any other purpose other than hairdressing without the approval of Council; or

(d) being a class B licence uses any hairdressing chemicals; or

(e) otherwise fails to comply with any provision of these by laws with which it is his duty to comply;

shall be guilty of an offence.

(2) Any person found guilty of an offence under subsection (1) shall be liable to a fine specified in the Second Schedule.

(3) Any person who fails to comply with any liability emanating from his or her contravention of any of the offences stipulated in these by-laws within 90 days, shall be guilty of an offence and liable to a fine not exceeding level 14 or to imprisonment to a period not exceeding two years or to both such fine and such imprisonment.

FIRST SCHEDULE:

Fees

Section	Description	Fee (US$)
4 (2)	Application fee for licence: Barber Beautician Hairdresser	20% of the licence per annum 20% of the licence per annum 20% of the licence per annum
5(2)	Licence fee for: Barber Beautician Hairdresser	$156 per chair per annum $156 per chair per annum $156.00 per chair per annum

SECOND SCHEDULE

Offences and Penalties

Section	Description of offence	Penalty (US$)
4 and 5	Operating without a license:	US$20,00
	Failure to renew licence	100% of licence fees
5(7)	Transfer of license to any other premise without approval	US$0,00

Section	Description of offence	Penalty (US$)
5(7)	Transfer of license to any other person without approval	US$0,00
5(8)	Failure to display license in a conspicuous place	US$20,00
6(1)(e)	Use of part of the premise as a dwelling place	US$0,00
7(1)(a)	Failure to keep barber and hairdresser's shop in good order and repair	US$0,00
7(1)(b)	Failure to wear an approved clean overall jacket, both jacket and safari or any clothing of white or light material washable material without pockets when attending to a customer.	US$33,37
7(1)(c)	Failure to sweep falling hair on the floor and placing it in the container.	US$0,00
7(1)(d)	Failure to wash hands thoroughly before attending to a subsequent customer.	US$0,00
7(1)(e)	Failure to sterilize instrument, appliances or implements after being used on any one person.	US$0,00
7(2)(a)	Use of hair dressing chemicals by classes b.	US$0,00
7(2) (b)	Permitting any person who appears to be suffering from any diseases of the skin or hair or from any infectious, contagious or communicable diseases to be attended in his or her shop	US$0,00
7(2)(a)	Permitting any person who appears to be suffering from any diseases of the skin or hair or from any infectious, contagious or communicable diseases to be employed in his or her shop.	US$0,00
8(2)	Refusal to consent to examination by a registered medical practitioner when required to do so by the Officer responsible for health.	US$0,00
10(1)(a)	Deposits throw or places or causes or suffers to be deposited, thrown or placed upon any street side walk, open land or space or down the drain, or artificial hair.	US$0,00
10(1)(b)	Perform any hairdressing or hair cutting at any undesignated place.	US$0,00
10(1) (c)	Being a hairdresser uses his or her hairdresser's shop for any other purpose other than hairdressing without the approval of Council.	US$0,00
10(1) (d)	Being a class B licence uses any hairdressing chemicals.	US$0,00

NB: The above penalties shall be payable in local currency at the prevailing interbank rate and are exclusive of VAT.